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SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT

This Software as a Service Subscription Agreement (·Agreement·) is entered into as of the 15th day of April, 2025 (·Effective Date·), by and between Stratify Cloud Solutions, Inc., a Delaware corporation with its principal place of business at 725 Lexington Avenue, New York, NY 10022 (·Provider·), and Arrowpoint Technologies LLC, a New York limited liability company located at 1435 Hudson Street, New York, NY 10014 (·Subscriber·).

RECITALS

WHEREAS, Provider develops and licenses access to its proprietary cloud-based software platform known as "Stratify360" for business analytics and workflow automation; and

WHEREAS, Subscriber desires to obtain, and Provider agrees to grant, a subscription license to use Stratify360 pursuant to the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the parties hereby agree as follows:

1. Definitions

1.1 ·Affiliate· means any entity controlling, controlled by or under common control with a party.

1.2 ·Confidential Information· means all non-public information disclosed by one party to the other relating to the software, business plans, or Subscriber's data.

1.3 ·Documentation· means user guides, manuals, and help files related to the Software, as provided by Provider.

1.4 ·Effective Date· is April 15, 2025.

1.5 ·Fees· means the subscription fees payable by Subscriber for the use of the Software as specified in Section 5.

1.6 ·Initial Term· means a period of twelve (12) months commencing on the Effective Date.

1.7 ·Renewal Term· means any successive twelve (12) month period after the Initial Term upon which this Agreement is renewed.

1.8 ·Services· means the hosting, maintenance, updates, and support for the Stratify360 Software.

1.9 ·Software· means the Stratify360 software platform provided by Provider as a service.

2. License Grant and Restrictions

2.1 License Grant. Subject to Subscriber's compliance with the terms of this Agreement, Provider hereby grants Subscriber a non-exclusive, non-transferable, limited license to access and use the Software solely for Subscriber's internal business purposes during the Term.

2.2 Restrictions. Subscriber shall not (a) sublicense, rent, lease, or distribute the Software to any third party; (b) reverse engineer, decompile, or disassemble the Software except to the extent permitted by applicable law; (c) use the Software to develop competing software products; or (d) remove any proprietary notices.

3. Subscription Term

3.1 Term. The Initial Term shall commence on the Effective Date and will continue for twelve (12) months unless earlier terminated as provided herein.

3.2 Renewal. This Agreement shall automatically renew for successive Renewal Terms unless either

party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the Initial Term or any Renewal Term.

4. Subscriber Obligations

4.1 Authorized Users. Subscriber shall ensure that only authorized employees, contractors, or agents (~~Authorized Users~~) access the Software.

4.2 Compliance. Subscriber shall comply with all applicable laws and regulations in using the Software.

4.3 Data. Subscriber shall be solely responsible for the accuracy and legality of data input into the Software.

5. Fees, Payment and Late Payment

5.1 Fees. Subscriber shall pay Provider an annual subscription fee of \$48,000 USD (~~Fees~~) payable in advance within thirty (30) days of the invoice date. Provider shall invoice Subscriber within ten (10) days following the Effective Date for the Initial Term Fees and annually thereafter for Renewal Terms.

5.2 Payment Method. Payments shall be made by wire transfer or check to the bank account specified by Provider.

5.3 Late Payment. Any Fees not paid within thirty (30) days after the due date shall accrue a late payment penalty equal to two percent (2%) per month on the outstanding amount, calculated daily and compounded monthly, beginning on the first day following the due date until payment is received in full.

5.4 Suspension. Provider reserves the right to suspend Subscriber's access to the Software if Fees remain unpaid more than sixty (60) days after due date.

6. Provider Obligations

6.1 Availability. Provider shall use commercially reasonable efforts to make the Software available 99.5% of the time in any calendar month, excluding scheduled maintenance.

6.2 Maintenance and Support. Provider shall provide updates, patches, and support services as described in Exhibit A attached hereto.

6.3 Data Security. Provider shall implement reasonable security measures to protect Subscriber data.

7. Confidentiality

7.1 Obligations. Each party agrees to maintain the confidentiality of Confidential Information disclosed by the other party during the Term and not disclose it to third parties except as required by law or authorized in writing.

7.2 Duration. Confidentiality obligations shall survive termination of this Agreement for three (3) years.

8. Warranties and Disclaimers

8.1 Warranties. Provider warrants that the Software will perform substantially in accordance with the Documentation under normal use.

8.2 Disclaimer. EXCEPT AS EXPRESSLY PROVIDED, THE SOFTWARE IS PROVIDED ~~AS IS~~ WITHOUT WARRANTIES OF ANY KIND, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

9. Limitation of Liability

9.1 Limitation. IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS OR DATA, EVEN IF ADVISED OF THE POSSIBILITY THEREOF.

9.2 Cap. PROVIDER'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID BY SUBSCRIBER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

10. Termination

10.1 Termination for Cause. Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any term and fails to cure within thirty (30) days of notice.

10.2 Termination for Insolvency. Either party may terminate upon insolvency, bankruptcy, or assignment for the benefit of creditors.

10.3 Effect of Termination. Upon termination, Subscriber shall cease use of the Software and Provider will deactivate Subscriber's access. Sections 7 (Confidentiality), 8 (Warranties), 9 (Limitation of Liability), and 10.3 shall survive.

11. Miscellaneous

11.1 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of law principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in New York County, New York for any disputes arising out of or in connection with this Agreement.

11.2 Entire Agreement. This Agreement, including Exhibit A, constitutes the entire agreement and supersedes all prior agreements relating to the subject matter hereof.

11.3 Amendments. Any amendment must be in writing and signed by authorized representatives of both parties.

11.4 Assignment. Neither party may assign this Agreement without prior written consent, except to an Affiliate or in connection with a merger or sale of substantially all assets.

11.5 Notices. All notices shall be in writing and delivered via certified mail or email to the addresses listed above.

11.6 Force Majeure. Neither party shall be liable for delays or failures due to causes beyond reasonable control, including acts of God, war, or internet outages.

IN WITNESS WHEREOF, the parties hereto have executed this Software as a Service Subscription Agreement as of the Effective Date.

STRATIFY CLOUD SOLUTIONS, INC.

By: _____
Name: Jennifer L. Marks
Title: Chief Operating Officer
Date: April 15, 2025

ARROWPOINT TECHNOLOGIES LLC

By: _____
Name: Daniel R. Chen
Title: Managing Member
Date: April 15, 2025

EXHIBIT A
SUPPORT AND MAINTENANCE SERVICES

Provider agrees to provide the following support and maintenance services during the Term:

1. Help Desk Support: Email and phone support during Provider's normal business hours (9:00 AM - 6:00 PM EST, Monday through Friday).
2. Software Updates: Provider will provide periodic updates, patches, and enhancements to improve functionality and security.
3. Issue Response: Provider will respond to critical severity issues within four (4) hours and non-critical issues within twenty-four (24) hours.
4. Scheduled Maintenance: Provider shall provide at least seventy-two (72) hours prior notice for scheduled maintenance windows.

Case Number for Reference: NYS SAA-02547-2025